

Aged, Blind and Disabled Manual
Section: Non-Financial Eligibility Requirements
Policy Manual Number: 110.020
Chapter: **ABD State Residence**

Legal Authority: 42 CFR 435.403; TCA 71-5-120; TCA 40-38-601 *et seq.*; Tenn. Comp. R. & Regs. 1200-13-20; 1360-11-01

1. Policy Statement

An individual must be a Tennessee resident to be eligible for TennCare Medicaid. An individual is considered a Tennessee resident if the individual attests to living in Tennessee, intends to reside in Tennessee and there is no information to indicate otherwise. Individuals will not be required to reside in Tennessee for a specific amount of time to claim residency. Individuals considered temporarily absent from Tennessee may retain their Tennessee residency under certain circumstances.

2. Residency

a. Non-institutionalized Individuals under Age 21 who are not Emancipated or Married

For non-institutionalized individuals under age 21 who are not emancipated or married, and not receiving Title IV-E payments, the state of residence is:

- i. The state in which the individual is living, with or without a fixed address; or
- ii. The state in which the parent or caretaker resides.

b. Institutionalized Individuals under Age 21 who are not Emancipated or Married

For institutionalized individuals under age 21, who are not emancipated or married, and not receiving Title IV-E payments, the state of residence is:

- i. The state in which the parent or legal guardian lives at the time of placement in an institution;
- ii. The state in which the parent or legal guardian who files the application is currently living if the individual is institutionalized in that state; or
- iii. The state in which the party who files the application lives, if the institutionalized individual has been abandoned by her parents and does not have a legal guardian.

Aged, Blind and Disabled Manual Policy Manual Number: 100.005	Section: Non-Financial Eligibility Requirements Subject: ABD State Residence
--	---

c. Non-Institutionalized Individuals Age 21 and over, or under Age 21 and Emancipated or Married

For non-institutionalized individuals age 21 and over, or under age 21 who are emancipated or married and capable of indicating intent, the state of residence is:

- i. The state in which they are living and intend to reside with or without a fixed address; or
- ii. Where the individual lives and entered with a job commitment or seeking employment, whether or not they are currently employed.

d. Institutionalized Individuals Age 21 and Over

For institutionalized individuals age 21 and over who are capable of indicating intent and not receiving State Supplementary Payments (SSP), the state of residence is the state where the individual is living and intends to reside.

e. Institutionalized Individuals Age 21 and over who became Incapable of Indicating Intent before the Age of 21

For institutionalized individuals age 21 and over who became incapable of indicating intent before the age of 21 and not receiving Title IV-E or SSP, the state of residence is:

- i. That of the applying parent when the parents live in different states, or that of the applying legal guardian;
- ii. The state in which the parent or legal guardian lives at the time of placement in an institution;
- iii. The state in which the parent or legal guardian who files the application is currently living if the individual is institutionalized in that state; or
- iv. The state in which the party who files the application lives, if the institutionalized individual has been abandoned by his parents and does not have a legal guardian.

f. Institutionalized Individuals Age 21 and over who became Incapable of Indicating Intent after the Age of 21

For institutionalized individuals age 21 and over who became incapable of indicating intent after the age of 21 and not receiving SSP, the state of residence is the state where the individual is physically present, except where another state makes a placement.

g. Non-Institutionalized Individuals over Age 21 who are not Capable of Stating Intent

For non-institutionalized individuals over 21 and not capable of stating intent, the state of residence is the state in which they live.

Aged, Blind and Disabled Manual Policy Manual Number: 100.005	Section: Non-Financial Eligibility Requirements Subject: ABD State Residence
--	---

h. Individuals in an Out-of-State Institution

i. An individual placed out of state is considered a resident of the state that:

1. Placed an individual in an out of state institution; or
2. Arranged for placement of an individual in an out of state institution.

This is true even when the reason for initiating placement is due to a lack of resources.

ii. Action beyond providing basic information to individuals about Medicaid in another state is considered making or arranging placement, but the following is not:

1. Providing basic information about other states Medicaid programs, healthcare services and facilities; or
2. Helping individuals locate a facility when he or she is capable of indicating intent and independently decides to move.

If a competent individual leaves a state placement, the individual's state of residence is where the individual is physically located.

i. Individuals Receiving Federal Payments for Foster Care, Federal Payments for Adoption Assistance or SSP

An individual of any age receiving federal payments for foster care or adoption assistance under Title IV-E of the Social Security Act is a resident of the state in which the child lives. An individual of any age receiving a SSP is a resident of the state paying the SSP.

j. Individuals Participating in the State's Safe at Home Address Confidentiality Program

Tennessee's Safe at Home Address Confidentiality Program protects the home, school or work address of a relocated victim of domestic abuse or other listed offenses by providing a substitute address for the participant to provide in lieu of a current home or mailing address.

Participation in the Safe at Home Address Confidentiality Program is determined solely by the Secretary of State. For an individual participating in the state's Safe at Home Address Confidentiality Program, the state of residence is determined and verified by the Secretary of State.

3. Incapable of Indicating Intent

An individual is considered incapable of indicating intent when tests, determined acceptable by the Department of Disability and Aging (DDA), indicate an individual has an I.Q of 49 or less or a mental age of 7 or less. An individual is also considered incapable of indicating intent if found legally

Aged, Blind and Disabled Manual Policy Manual Number: 100.005	Section: Non-Financial Eligibility Requirements Subject: ABD State Residence
--	---

incompetent. Medical documentation from a physician, psychologist or other person licensed by the state in the field of intellectual disability may also be used if the documentation indicates that the individual is incapable of indicating intent.

4. Student

Individuals attending school out of state, but considered to be dependents of a Tennessee resident are temporarily absent while attending school. Individuals aged 18 to 22 attending school in Tennessee, but considered to be dependents of a non-Tennessee resident will not be considered a resident of Tennessee.

5. Temporary Absence

A temporary absence from Tennessee does not preclude continued eligibility if the individual indicates her intent to return to Tennessee once the purpose for the visit is accomplished when:

- a. The absence is for a specific purpose such as a temporary work assignment, visit, hospitalization, participation in an educational or rehabilitation program not available in Tennessee; or
- b. The absence is for children in treatment centers.

If an individual indicates that she is temporarily out of state, she must provide an anticipated date of return. The individual's temporary absence status will be assessed within 10 days of the individual's anticipated date of return.

If at any time during the absence, the individual is determined no longer eligible for TennCare Medicaid benefits for any reason, the case must be closed. Application or receipt of Medicaid or Advanced Premium Tax Credits (APTCs) in another state indicates intent to reside elsewhere and results in the loss of Tennessee residency. If a redetermination is required during the period of absence, follow renewal procedures and secure assistance from the other state as necessary.

6. Disputed Residency

An individual's physical location determines the state of residence if two or more states are unable to resolve what state is the state of residence.

7. Verification

An individual is considered a Tennessee resident if the individual attests to living in Tennessee and intends to reside in the state. TennCare will conduct post-eligibility verification of state residency to ensure program integrity using national and state electronic verification sources. If an individual's state of residence is questionable, he will have 20 days to provide documentary evidence supporting his claim. Evidence of residency includes:

- a. A statement of intent to reside in Tennessee; and

Aged, Blind and Disabled Manual Policy Manual Number: 100.005	Section: Non-Financial Eligibility Requirements Subject: ABD State Residence
--	---

- b.** A current Tennessee rent or mortgage receipt or utility bill in the adult applicant's name;
- c.** A current Tennessee motor vehicle driver's license or identification card issued by the Tennessee Department of Safety in the adult applicant's name;
- d.** A current Tennessee motor vehicle registration in the adult applicant's name;
- e.** A document showing that the adult applicant is employed in Tennessee;
- f.** A document showing that the adult applicant has registered with a public or private employment service in Tennessee;
- g.** Evidence that the adult applicant has enrolled the applicant's children in a school in Tennessee;
- h.** Evidence that the adult applicant is receiving public assistance in Tennessee;
- i.** Evidence of registration to vote in Tennessee;
- j.** Evidence of participation in the Safe at Home Address Confidentiality Program; or
- k.** Other evidence deemed sufficient by TennCare as proof of residency in Tennessee.

Aged, Blind and Disabled Manual Policy Manual Number: 100.005	Section: Non-Financial Eligibility Requirements Subject: ABD State Residence
--	---

Version History

Revision Date	Section	Section Title	Page Number(s)	Reason for Revision	Reviser
03.20.2015				Publication	
03.18.2019	2.j.; 7.j	Legal Authority; Individuals Participating in the State's Address Confidentiality Program; Verification	1; 3-4	Policy Clarification	TN
05.01.2019	2.j; 7.j.	Legal Authority; Individuals Participating in the State's Safe at Home Address Confidentiality Program; Verification	1; 3-4	Policy Clarification	TN
08.01.2024	3.	Incapable of Indicating Intent	3	Non-Substantive Change	BP